

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**DEFENDANT’S MOTION FOR JUDICIAL NOTICE OF APRIL/MAY 2022
FILINGS AND NOTICE OF FILING (EXHIBITS A–B) – DECISION ON
THE PAPERS**

Defendant, pro se, moves the Court to take judicial notice of two court records filed in a related Escambia County Circuit Court matter and to accept the attached true copies as **Exhibits A–B**, and states:

1. Authority

Under the Evidence Code, a court may take judicial notice of “records of any court of this state,” upon request and sufficient information, at any stage. §§ 90.202(6), 90.203, 90.204, Fla. Stat.

2. Records for which notice is requested (attached)

- **Exhibit A — “Address to the Court.”** Filed in **Case No. 2020-CA-**

001021 following the April 27, 2022 hearing (file-stamp reflecting May 6, 2022). The filing (i) requests that the opposing party be required to provide the juridical existence and foreign address of Toke Oil and Gas S.A.; and (ii) requests sequencing—that the Court decide the remanded 2018 case first (including the threshold “Toke” issues) before taking up the later 2020 action.

- **Exhibit B — April 29, 2022 letter to the Court.** File-stamped May 6, 2022, memorializing that opposing counsel refused to provide the identity/capacity/foreign-address information necessary to amend and reiterating the sequencing request tied to the remanded 2018 case.

Judicial assignment. The remanded 2018 action (this case) and the later 2020 directors’ action were assigned to the same division judge, the Hon. Jan Shackelford. The April 2022 filings (Exhibits. A–B) were addressed to that judge in the 2020 case; the Final Judgment at issue here was likewise entered by the same judge.

(If the Court prefers certified copies, Defendant will promptly supplement.)

3. Relevance to pending post-judgment motions

Judicial notice is sought because these contemporaneous filings are directly relevant to issues already before the Court:

- **Rule 1.540(b)(4)/(b)(3) (Count 8):** They show Defendant squarely raised in April 2022 the need for competent proof that “Toke Oil and Gas S.A.” exists as a juridical person with capacity and a foreign address/authority—proofs not admitted in this record but presupposed by the declaration in Count 8.
- **Rule 1.530 (Omnibus rehearing/alter-amend):** They corroborate preservation of objections and the need for specific written findings where required by rule or statute.
- **Rule 2.330 (Disqualification):** They are objective, dated court records showing that Defendant requested sequencing (decide the remanded 2018 matter first, before the 2020 action) and requested basic corporate proofs well before the later adverse rulings, yet those threshold items went unaddressed. The fact that both matters were before the same judge is an objective circumstance that frames Defendant’s April 2022 sequencing/identity requests and is relevant to the pending Rule 2.330 motion.

4. Relief Requested

Defendant respectfully requests that the Court:

1. **Take judicial notice of Exhibits A–B** under §§ 90.202(6), 90.203,

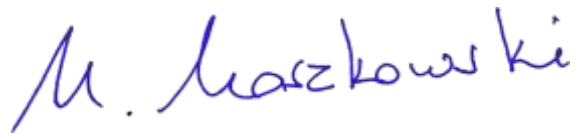
and 90.204;

2. **Deem Exhibits A–B part of the record** for purposes of resolving Defendant's pending **Rule 1.530, Rule 1.540, and Rule 2.330** motions; and
3. Grant such other and further relief as is just.

Decision on the papers is requested (no oral argument).

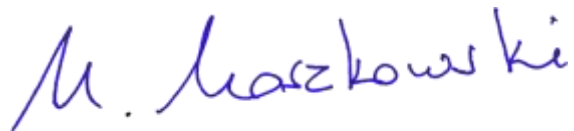
Respectfully submitted on this 9th day of September, 2025.

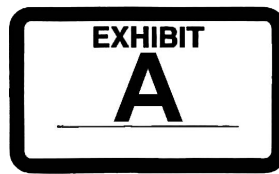
Marc Moszkowski, Pro Se
Email: m.moszkowski@deepgulf.net
Le Verdos
83300 Châteaudouble, France



CERTIFICATE OF SERVICE

I hereby certify that, on this 9th day of September, 2025, a copy of the foregoing has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.





IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

MARC M. MOSZKOWSKI,

Plaintiff,

vs.

Case No.: 2020 CA 001021

RUSTIN R. HOWARD

Division: E

Defendant

and

THOMAS J. JOHNSON,

Defendant

PLAINTIFF MOSZKOWSKI'S ADDRESS TO THE COURT

Hearing, April 27th, 2022 at 10:00 AM CDT

Your Honor,

We are here today not only because my opponents persist, after four long years of stalling, to deny the essential and indispensable information I need to amend my complaint, but also because of an absurd circumstance that is exclusively of their doing, whereas they managed to unhitch the proverbial cart so that it now appears to draw the horse, thus making an absurd litigation even more irrational.

Despite all the procedural sleights of hand, this case addresses real, blatant, and recurrent criminal fraud and abuse on their part.

This case is directly dependent on another case on your docket (No: 2018 CA 000543), which was remanded from U.S. District Court to Florida Circuit Court for an alleged lack of diversity of citizenship, although, quite amazingly, three years after I had removed the case to U.S. District Court, and a year after judgment had been rendered. Please note that the case was remanded despite the total and absolute absence of any new element. Also, quite significantly, the remand occurred a year after this Complaint was filed.

The judgment in U.S. District Court was in my favor for 8 out of 9 counts, the remaining count being in effect moot and undeniably of the highest absurdity. The litigation has been going on for over four years in no less than four Courts of Law and the case files contain more than 5,000 pages, although I can't find in the jurisprudence any equivalent for its absurdity and deceitfulness. In June, 2021, I moved this Court to strike the re-filed complaint as a sham, for there can be no doubt that it is a sham.

In order to obtain redress, I filed the present complaint, after judgment had been rendered, and nearly a year before the case against me was remanded to Florida Circuit Court. I could evidently not have known of the remand at the time of filing. Here, I must observe that although Counsel for my opponents argued that I could not sue "*until an appeal is decided*", the

very same jurisprudence he cited in support of his theory also states very clearly that "*courts are divided on the effect of an appeal*", which in effect clearly invalidates his argument.

I am actively investigating my options regarding the amendment of my complaint. I am referring in particular to the opposing Counsel's contention that I ought to sue the original corporate plaintiff rather than its representatives. Understandably, in order to do so I must first be apprised of the legal status and whereabouts of the alleged foreign plaintiff.

For as many as four years of litigation, I have demanded said information from my opponents, but never obtained it.

I see two possibilities:

A. The foreign entity has current legal existence and a valid foreign address, and therefore my opponents should have been able to readily supply the information since as early as 2018, and I can't see how they shouldn't be severely reprimanded for having denied such mundane information for such a considerable time. In such a case I could consider suing the foreign entity, including in its foreign jurisdiction.

or

B. The foreign entity has no current legal existence and no valid foreign address. Therefore the lack of diversity of citizenship proves to be fraudulent, the remand from U.S. to Florida Circuit Court must be reversed, the judgment in my favor must be reinstated, and Counsel for my opponents ought to be harshly reprimanded for having falsely and fraudulently joined a plaintiff which not only had no current legal existence, but also led to the remand to Florida Circuit Court of a case that had been already judged in U.S. Court one year prior.

I have clearly demonstrated that I am more than willing to amend my complaint for malicious prosecution, abuse of process, breach of contract, fraud, civil conspiracy, and perjury, despite the extraordinary circumstance that my complaint relates to a case that was artificially and frivolously re-filed in this very same Court of Law **ONE YEAR AFTER** I filed my own complaint in response.

My opponents must stop playing on words to evade accountability, be it civil or criminal. For starters, they must finally apprise me at once of the current unadulterated legal status and valid foreign address of the foreign

party they claim to represent, so that I can finally be in a position to amend my complaint.

It is precisely the denial by my opponents of such essential and indispensable legal information that prevents me from filing my amended complaint in a timely manner. Who ever heard of a supposedly foreign plaintiff who stubbornly refuses for four years to reveal any proof of its very foreign existence and a valid foreign address? Would this Court of Law have ever allowed me to file this complaint under some unproven identity and without providing any legal address? Wouldn't such an attempt have been immediately referred to the criminal justice system?

Moreover, as I had suggested in my Motion for Continuance and later during the first hearing, the present case should be frozen (for want of a better term) until after a decision is made on related but **antecedent** case 2018 CA 000543, which was artificially re-introduced on your docket one year **after** the present **dependent** case was filed.

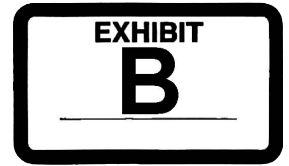
I must add that while it is one thing for an attorney to represent a defendant whose bad faith he has some reason to suspect, it is altogether another to author and sign on behalf of a plaintiff whose bad faith he has every reason

to suspect, a malicious, mendacious, absurd lawsuit devoid of any authentic evidence whatsoever and, to add insult to injury, long past the expiration of the Statute of Limitations, thus wasting not only my time and resources but also those of four Courts of Law, State and Federal. Doesn't some code of professional conduct precisely prohibit lawyers from engaging in such illegitimate representation?

I reiterate that in order to be able to amend my complaint I must first obtain from my opponents the very simple information I have been demanding for more than four years.

I pray your Honor will rightfully compel my opponents to finally provide this piece of essential and indispensable information and will put this case on hold until the antecedent case is decided.

M



April 29th, 2022

From:

Marc Moszkowski
Le Verdos
83300 Châteaudouble, France

To:

The Honorable J. Shackelford
Escambia Circuit Court Judge
Via Florida EPortal

Re: Marc Moszkowski v. Rustin R. Howard and Thomas S. Johnson
Case No. 2020 CA 001021

Dear Judge Shackelford,

In response to the proposed Final Judgment prepared by Counsel Braden K. Ball, Jr. earlier today, about which he wrote in his cover letter "*we understand that Mr. Moszkowski may have an objection to the proposed Final Judgment*", I hereby confirm that I did write to Mr. Ball earlier today an elaborate email stating my firm objections.

My message to Mr. Ball included the following paragraph:

"It can hardly be dissimulated any longer that the only reason for my not being able to file my Amended Complaint on time was that you repeatedly ignored my numerous demands for the basic identity information I absolutely needed in order to amend my complaint.

During the hearing you even stated quite bizarrely that my demand was some sort of "*fishing expedition*", as if my demand for a proof of existence of my opponents could be anything but absolutely legitimate."

My objection is very serious, since, as I wrote in great detail in my Motion to Compel (March 14th, 2022), my Motion to Extend Time (March 30th, 2022), and my Response to Defendant's Motion for Entry of Final Judgment (April 5th, 2022), it is precisely the failure or refusal by Mr. Ball to provide essential and indispensable identity information about my opponents that prevented me from filing my Amended Complaint on time, which I confirmed again during the hearing held yesterday.

Another objection is that I do not understand the significance of the phrase "*Final Judgment of no liability*" and its potential consequences. I asked Mr. Ball to provide an explanation, but he didn't oblige. For reference, Google returns only 29 results for the complete phrase in quotes, which may indicate that it is not a frequent occurrence.

I understand from administrative rules I obtained on the website of another Florida Judicial District that I may submit an alternate proposed order of judgment within 5 business days. I shall endeavor to do so in due time.

Thank you for your consideration.

Sincerely,

A handwritten signature in black ink, appearing to read "M. Moszkowski". The signature is fluid and cursive, with the first letter of the last name being a large, stylized 'M'.

Marc Moszkowski